

LW6409A: DISSERTATION

Effective Term

Semester A 2025/26

Part I Course Overview

Course Title

Dissertation

Subject Code

LW - Law

Course Number

6409A

Academic Unit

School of Law (FL)

College/School

School of Law (FL)

Course Duration

Two Semesters

Credit Units

0-6

Level

P5, P6 - Postgraduate Degree

Medium of Instruction

English

Medium of Assessment

English

Prerequisites

Subject to the approval of the Programme Director/Associate Programme Director students are required to pass the following core courses and obtain a CGPA of 3.3 or above before taking LW6409A Dissertation:

- 1)LW5400 Legal Concepts (except for students who have been granted exemption)
- 2)LW6401 Dispute Resolution in Theory & Practice
- 3)LW6405 Arbitration Law

Precursors

Nil

Equivalent Courses

Nil

Exclusive Courses

LW6409B Advanced Award Writing (Students are required to take either LW6409A Dissertation or LW6409B Advanced Award Writing, subject to fulfillment of the respective prerequisites.)

Part II Course Details

Abstract

This course aims to develop the students' (1) sense of curiosity to knowledge; (2) critical thinking skills to assess ideas; and (3) ability to demonstrate original discovery/innovation/creativity in applying their knowledge and skills in their independent research. Students will develop expertise in a chosen subject area through the application of theory and techniques provided by the programme. In undertaking independent research and producing an academic dissertation, students will demonstrate their intellectual capacity in producing a significant piece of academic writing, understanding of the chosen subject matter, and the ability and skills necessary in managing and presenting the dissertation in a precise and coherent manner.

Course Intended Learning Outcomes (CILOs)

CILOs		Weighting (if app.)	DEC-A1	DEC-A2	DEC-A3
1	display an attitude of discovery, curiosity, critical thinking, analytical thinking and creative problem-solving towards research and writing an academic dissertation		x	x	x
2	demonstrate an understanding of how to use authoritative primary and secondary legal sources, ADR sources, and legal research methods in developing and producing an academic dissertation		x	x	x
3	apply an understanding of the nature of academic writing, including standards of quality, technical requirements, and academic writing format towards articulating and producing a clear, logical, concise, and cogent academic dissertation in the programme				x
4	creatively and accurately apply the knowledge and skills learned in this course as well as other courses of the programme to transform them into an academic dissertation that can contribute to the further understanding and development of the law and practice in the area of ADR			x	x

A1: Attitude

Develop an attitude of discovery/innovation/creativity, as demonstrated by students possessing a strong sense of curiosity, asking questions actively, challenging assumptions or engaging in inquiry together with teachers.

A2: Ability

Develop the ability/skill needed to discover/innovate/create, as demonstrated by students possessing critical thinking skills to assess ideas, acquiring research skills, synthesizing knowledge across disciplines or applying academic knowledge to real-life problems.

A3: Accomplishments

Demonstrate accomplishment of discovery/innovation/creativity through producing /constructing creative works/new artefacts, effective solutions to real-life problems or new processes.

Learning and Teaching Activities (LTAs)

LTAs		Brief Description	CILO No.	Hours/week (if applicable)
1	1	Consultation with supervisor - Students are required to find their own supervisors from a list of supervisors provided by the programme administration team to supervise their dissertations. Each student will be required to work independently, undertaking an individual piece of work related to his/her chosen area of research. Students will be encouraged to come up with their own topics, although the supervisor may provide some guidance where necessary.	1, 2, 3, 4	1

2	2	Upon appointment and in consultation with the student the supervisor should set up a monitoring programme. The programme should include the following aspects: i. An initial meeting at which the independent research paper proposal is discussed including, the proposed research, methodology, timetable for collection and collation, and the general timetable for the monitoring the independent research paper into the future. ii. Presentation of an initial draft to the supervisor for consideration, analysis and comment. iii. Submission of a final draft. This final draft may or may not warrant comment from the supervisor and it would be a matter for the student and the supervisor to determine at what stage and for what purpose this final draft is to be submitted.	1, 2, 3, 4	Emails, through virtual and face-to-face consultations as scheduled.
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Assessment Tasks / Activities (ATs)

	ATs	CILO No.	Weighting (%)	Remarks ("- " for nil entry)	Allow Use of GenAI?
1	Coursework (dissertation) Completion of an in-depth research paper on a chosen topic within the confines of Alternative Dispute Resolution.	1, 2, 3, 4	100	The use of Generative AI tools is not allowed.	No

Continuous Assessment (%)

100

Minimum Continuous Assessment Passing Requirement (%)

40

Additional Information for ATs

Grading of Student Achievement: (Refer to Grading of Courses in the Academic Regulations (Attachment) and to the Explanatory Notes.)

Students will be given a duration of 25-30 calendar weeks to complete the dissertation. The final deadline for submission of the dissertation will be announced by the School of Law. Students can only extend the submission deadline of their dissertation for 1 week by approval of their supervisors. The dissertation topic must be approved by the Programme Director. Students should take an initiative role to contact their supervisor in the course of preparation of the dissertation. Please refer to the LLMArbDR LW6409A Guidelines for Students and Supervisors for further details on the roles and responsibilities of LW6409A students and dissertation supervisors.

The dissertation is to be prepared and submitted in accordance with the standards in the "Regulations for the Form of Theses" as contained in the City University of Hong Kong Calendar. The length shall be in the range of 12,000 to 20,000 words (excluding footnotes). The main text may be supplemented by footnotes as per the Oxford Standard for Citation of Legal Authorities (OSCOLA) and appendices.

The dissertation will be assessed on the basis of the finished written work. The dissertation will be marked by the dissertation supervisor and by another marker, who will normally be a member of the academic staff of the School of Law. In some cases, where relevant expertise is required, the second assessor may be from another department or from an outside organization. Each assessor will mark the dissertation on the basis of 100 points. The weight of each assessment is a maximum of 50%, giving a total of 100% for the dissertation. Where the marks awarded by the two assessors differ widely (more than 20 marks), a third marker will act as the final arbiter.

Assessment of the dissertation will be based on the student's:

- ability to plan, monitor and maintain a viable work schedule;
- the scope of the dissertation, the extent to which it addresses opportunities and objectives in the chosen subject area;
- degree of innovation and original achievement in the dissertation;
- ability to integrate and develop knowledge and skills learned in the programme;
- degree of success in meeting the goals of the dissertation topic; and
- quality and clarity of the written dissertation.

On the recommendation of the internal assessors, the Dissertation Committee may require the student to present and defend the dissertation viva voce. This oral presentation of the dissertation will not contribute to the final mark. The purpose of the oral presentation is to test the student's comprehension of the content and context of the dissertation, and to confirm that the work presented is that of the student. The oral presentation will be made before a panel appointed by the Dissertation Committee and normally comprising the Programme Director or the Chairman of the Assessment Panel as Chairman, the dissertation supervisor and the second assessor.

Assessment Rubrics (AR)

Assessment Task

Coursework (for students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter)

Criterion

- Demonstration of ability to identify issues, current trends and practices.
- Application of legal writing and research skills.
- Demonstration of aptitude of analysing legal issues based on critical and logical thinking.
- Plan and investigate a theory or argument in the context of a particular area of law.
- To evaluate critically to arrive at a clear and defensible opinion on the issues within the context of the research.
- To offer a personal and justifiable opinion on the effectiveness of specific laws relating to the dissertation topic and the desirability for their reform.

Excellent

(A+, A, A-) Strong evidence of original thinking; good organization, capacity to analyse and synthesize; superior grasp of subject matter; evidence of extensive knowledge base.

Good

(B+, B, B-) Evidence of grasp of subject, some evidence of critical capacity and analytic ability; reasonable understanding of issues; evidence of familiarity with literature.

Fair

(C+, C, C-) Student who is profiting from the university experience; understanding of the subject; ability to develop solutions to simple problems in the material.

Marginal

(D) Sufficient familiarity with the subject matter to enable the student to progress without repeating the course.

Failure

(F) Little evidence of familiarity with the subject matter; weakness in critical and analytic skills; limited, or irrelevant use of literature.

Assessment Task

Coursework (for students admitted from Semester A 2022/23 to Summer Term 2024)

Criterion

- Demonstration of ability to identify issues, current trends and practices.
- Application of legal writing and research skills.
- Demonstration of aptitude of analysing legal issues based on critical and logical thinking.
- Plan and investigate a theory or argument in the context of a particular area of law.
- To evaluate critically to arrive at a clear and defensible opinion on the issues within the context of the research.
- To offer a personal and justifiable opinion on the effectiveness of specific laws relating to the dissertation topic and the desirability for their reform.

Excellent

(A+, A, A-) High

Good

(B+, B) Significant

Marginal

(B-, C+, C) Moderate

Failure

(F) Inadequate

Part III Other Information**Keyword Syllabus**

Independent research; Subject matter expertise; Application of theory and techniques.

1.1 Detailed Syllabus

There is no formal detailed syllabus. Students will be required to undertake an individually supervised research and dissertation preparation. Students will also be required (compulsory) to attend an introductory course to be conducted by the Programme Director prior to the commencement of the course.

Reading List**Compulsory Readings**

Title	
1	Anderson, Jonathan, Assignment and Thesis Writing 4th ed. Wiley, Brisbane, 2001.
2	Bachner, Brian & Campbell, David. Style Manual for Legal Writing Faculty of Law, City Polytechnic of Hong Kong, 1993

3	Barzun, Jacques, The Modern Researcher 6th ed., Thomson/Wadsworth, Belmont, CA, 2004.
4	Bell, Judith., Doing your Research Project : a Guide for First-Time Researchers in Education and Social Science 3rd ed., Open University Press, Buckingham, 1999
5	Blackman, Josh. How to Use Internet for Legal Research Find/SVP, 1996
6	Campbell, Enid Mona. Legal Research: Materials and Methods 4th ed., LBC Information Services, 1996
7	Chatterjee, C. (Charles). Methods of Research in Law Old Bailey Press, 1997
8	Cottrell, Jill. Legal Research : A Guide for Hong Kong Students Hong Kong University Press, 1997
9	Dees, Robert, Writing the Modern Research Paper, 4th ed., Pearson/Longman, New York, 2003
10	Dunleavy, Patrick. Studying for a Degree: in the Humanities and Social Sciences Macmillan Education, 1986
11	Enright, Christopher. Legal Research: Traditional Skills and Modern Techniques CLE Dept. of the College of Law, Sydney, 1991
12	Evans, David, How to Write a Better Thesis 2nd ed. Melbourne University Press, Carlton South, Vic., 2002
13	Gilmer, Wesley. Legal Research, Writing & Advocacy : A Sourcebook 2nd ed., Anderson, 1987
14	Holborn, Guy. Butterworths Legal Research Guide 2nd ed., Butterworths, 2001
15	Hult, Christine A, Researching and Writing Across the Curriculum 2nd ed., Longman, New York, 2002
16	Lester, James, Writing Research Papers : A Complete Guide 10th ed., Longman, New York, 2002
17	Nigel Gilbert (ed.) Researching Social Life 2nd ed., SAGE, 2001
18	Preece, R. A, Starting Research : An Introduction to Academic Research and Dissertation Writing Pinter Pub, London, 1994
19	Ray, Mary Barnard & Ramsfield, Jill J. Legal Writing: Getting it Right and Getting it Written 3rd ed., West Group, 2000
20	Rozakis, Laurie, Schaum's Quick Guide to Writing Great Research Papers McGraw-Hill, New York, 1999
21	Seyler, Dorothy U, Doing Research: The Complete Research Paper Guide 2ed. McGraw-Hill College, London, 1999
22	Sharp, John A, The Management of a Student Research Project 3rd ed., Burlington, VT : Gower, Aldershot, Hants, England, 2002
23	Sorenson, Sharon, How to Write Research Papers 3rd ed. Lawrenceville, NJ : Thomson/Arco, Australia, 2002
24	Stephen Potter (ed.), Doing Postgraduate Research SAGE Publications in association with the Open University, London, 2002
25	Stott, David J. Legal Research 2nd ed., Cavendish, 1999
26	Thomas, Paul A. How to Use a Law Library 4th ed., Sweet & Maxwell, 2001
27	Tunkel, Victor. Legal Research Blackstone Press, 1992
28	Veit, Richard, Research : The Student's Guide to Writing Research Papers 4th ed., Pearson/Longman, New York, 2004.
29	Watt, Robert. Concise Legal Research 4th ed., Federation Press, 2001
30	Wren, Christopher G. & Wren, Jill Robinson. The Legal Research Manual : A Game Plan for Legal Research and Analysis West, 1986

Additional Readings

	Title
1	www.legislation.gov.hk
2	www.judiciary.gov.hk
3	www.hkiac.org
4	www.adr.org
5	www.cedr.co.uk
6	www.jamsadr.com

7	www.odr.info
8	www.arbitrators.org
9	www.hklawsoc.org.hk
10	www.hkba.org
11	http://icsid.worldbank.org/ICSID/Index.jsp